



October 17th Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=TZUzbn786hM
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Delaware County Commissioners Meeting Report

Meeting Date: October 17, 2016

Location: Commissioners' Meeting Room

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the commissioners' meeting to order at 9:00 AM [00:00:07](#).
- **Attendance:**
 - Members Present: Ms. Reagan, Mr. Kane (referenced as Mr. Enright/Kane in roll calls), and Mr. Brown (referenced as Mr. Ehmer/Hendren in roll calls).
 - Presiding Officer / Board: Delaware County Commissioners.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** Recitation of the Pledge of Allegiance [00:00:20](#).
- **Approval of Minutes:** Motion made and seconded to approve the minutes from the October 3, 2016 meeting. **Action & Vote:** Passed via roll call vote (Ms. Reagan: Yes; Mr. Kane: Yes; Mr. Hendren: Yes) [00:01:30](#).

3. Substantive Business & Board Action

- **00:00:49 Table Business: YOC Contract (Juvenile Detention Center)**
 - **Sponsor / Presenter:** County management / staff.
 - **Deliberation Summary:** Discussion regarding the annual Youth Opportunity Center (YOC) contract to provide management services for the juvenile detention center. Staff noted the contract terms and financial amounts remain identical to prior years and recommended approval.
 - **Action & Vote:** Motion and second to approve; passed via roll call vote (Ms. Reagan: Yes; Mr. Ehmer: Yes) **00:01:25**.
- **00:01:43 Bridge Project Agreement: ED 24917 / Bridge on 419 East**
 - **Sponsor / Presenter:** County staff / Highway department representative.
 - **Deliberation Summary:** Review of agreement document language changes for a bridge project located on 419 East (ED 24917 L160156). Staff confirmed documents were reviewed and in order.
 - **Action & Vote:** Motion and second to approve; passed via roll call vote (Ms. Reagan: Yes, Mr. [Kane]: Yes, Mr. Hendren: Yes) **00:02:26**.
- **00:02:32 City-County Utility Reimbursement Agreement**
 - **Sponsor / Presenter:** County staff / Angie.
 - **Deliberation Summary:** Agreement regarding utility strapping on a bridge project to be completed at no cost to the county, featuring a total reimbursement for work done for Vectren.
 - **Action & Vote:** Motion and second to approve; passed via roll call vote (Ms. Reagan: Yes, Mr. [Ehmer]: Yes) **00:02:52**.
- **00:03:13 Ordinance No. 2016-017: Rezoning Request (7700 Block of South East Jackson Street)**
 - **Sponsor / Presenter:** Marta Moody, Director for the Delaware-Muncie Metropolitan Planning Commission; Don McClelland (Applicant); Grant Sanders (Representative, Randall Miller).
 - **Deliberation Summary:** Request to rezone vacant property in the 7700 block of South East Jackson Street (south of the county highway garage) from R-3 Residence Zone to BV Variety Business Zone to operate a car lot. The Plan Commission gave a favorable recommendation (6-2, 3 absent). The applicant stated the site was historically intended for commercial development and will feature a car sales lot without repair services or oil changes. Neighbors and property owners raised extensive concerns regarding existing severe neighborhood drainage failures, standing water, flooded crawlspaces, property devaluation, increased traffic, and lighting. County staff and representatives discussed proposed bio-retention basins, site plan requirements, and INDOT commercial driveway permits.
 - **Item-Specific Public Input:**
 - *Carol Trager* (**00:05:34**): Spoke in opposition, citing concerns over a well-lit car lot, lower property values, increased traffic, and presenting a petition signed by neighbors within 300 feet.

- *Tom Barlow* (00:07:10): Spoke in opposition, detailing severe ongoing water drainage problems, pumping 14,000 gallons of water from under his house, and worsening neighborhood conditions.
 - *Terry Evans* (00:08:37): Spoke in opposition, explaining personal installation of 6-inch drainage tiles to mitigate chronic flooding and erosion from surrounding properties.
 - unnamed resident / neighbor* (00:14:38): Presented photographs of severe local flooding on Piccadilly Street and discussed broken historical drain lines.
 - **Action & Vote:** Motion and second to approve Ordinance 2016-017. **Action & Vote:** Passed via roll call vote (Ms. Reagan: Yes, Mr. Kane: Yes, Mr. Henry: Yes) 00:23:31.
 - 00:24:10 **Resolution No. 2016-020: Tax Sale Certificates to Muncie Redevelopment Commission**
 - **Sponsor / Presenter:** Jenna Bishop, Residential Program Administrator for the Muncie Redevelopment Commission.
 - **Deliberation Summary:** Request to assign tax sale certificates from Delaware County to the Muncie Redevelopment Commission for residential and Hardest Hit Fund demolition programs (properties include 322 East Washington, 125 West 5th, 2400 West 7th, 1210 East 13th, 1916 West 17th, 901 South Burlington, 925 South Madison, and 607 South Lane). Commissioners questioned the pace of past demolitions, the backlog of properties, state administrative requirements, topsoil testing delays, and lawn maintenance responsibilities. Legal counsel clarified the statutory redemption periods and tax sale processes.
 - **Action & Vote:** Motion and second to approve Resolution 2016-020 with amended properties (including 125 West 5th Street). **Action & Vote:** Passed via roll call vote (Ms. Reagan: Yes, Mr. [Ehmer]: Yes, Mr. Hendren: Yes) 00:35:54.
 - 00:37:35 **Town of Albany Utility Easement Request**
 - **Sponsor / Presenter:** County staff / Attorney Joe.
 - **Deliberation Summary:** Request from the Town of Albany for a utility easement on a small piece of property north of State Road 67 (west of the Dollar General Store) to install a lift station for a sewer separation project.
 - **Action & Vote:** Motion and second to approve the easement for the Town of Albany; passed via roll call vote (Mr. Kane: Yes, Ms. Reagan: Yes) 00:37:49.
 - 00:37:58 **Monthly Reports & Claim Payments**
 - **Sponsor / Presenter:** County administration / Court reports.
 - **Deliberation Summary:** Presentation of the September 2016 court reports and payment of claims totaling \$1,136,180.84.
 - **Action & Vote:** Motion and second to approve claim payments; passed via roll call vote (Mr. Kane: Yes, Ms. Reagan: Yes, Mr. Everett: Yes) 00:38:10.
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4. Open Public Comment / Citizen Forum

- *Note: No general open public comment period separate from agenda items was conducted during this session; public testimony was integrated directly into the rezoning public hearing.*
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5. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Commissioners requested periodic progress reports from the Muncie Redevelopment Commission regarding property demolitions to keep the board informed [00:36:00](#).
 - **Adjournment:** The meeting was recessed/adjourned [00:38:26](#).
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